

5.	26CV0558	BENJAMIN DAVID CROCKER vs. MC-025
Judgment on the Pleadings		

Plaintiff filed a Complaint on Judicial Council Form PLD-C-001 on March 3, 2026. No documents were attached to the form pleading. The Complaint alleges breach of contract, but no contract is attached. The damages alleged are \$51 million. A Declaration of Plaintiff was filed at the same time as the Complaint, but it also does not attach any documentation of the claim. A second Declaration of Plaintiff was filed on the same date with 55 pages of text referencing an arrest and Plaintiff's subsequent complaint regarding the circumstances of the arrest. However, the Declaration does not constitute a contract. Two more Declarations were filed on the same date, none of which attach a contract.

The motion filed on the same date as the Complaint at Declarations asserts that there are no issues of fact to be determined and that the Court is requested to issue an Order and Judgment in the amount of \$51 million. The Court understands this to be a request for judgment on the pleadings.

No proof of service of the Summons and Complaint or of the Motion was filed until April 6, 2026, indicating that the Board of Supervisors had been served with all of the documents on file in the matter on April 1, 2026. There is no evidence that Plaintiff has filed any claim under the Government Tort Claims Act, which is a prerequisite to filing a claim against a government agency. There is also no evidence in the record of a contract, and thus, no basis to rule on a breach of contract claim.

TENTATIVE RULING #5: THE MOTION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG

May 8, 2026
Dept. 9
Tentative Rulings

**CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.
PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**